





SIMPLE MAJORITY

Working Majority

Wherever the constitution is silent on the type of majority required it is assumed that simple majority is required

More than 50% of the members present and voting

PART XX AMENDMENT OF THE CONSTITUTION 368



Article 368 of The Indian Constitution

Power of Parliament to amend the Constitution and procedure therefor.

SIMPLE MAJORITY

more than 50% of members present and voting.

ABSOLUTE MAJORITY

more than 50% of total strength of house.

SPECIAL MAJORITY

generally 2/3rd of total strength or 2/3rd of present and voting.

EFFECTIVE MAJORITY

50% of strength. strength is calculated by subtracting vacant seats from total strength.

Simple Majority

- More than 50% of members present and voting
- Bills and motion passed by simple majority:
 - Any Ordinary Bill
 - Money Bills
 - Financial Bills
 - Confidence Motion/ No confidence Motion
 - Censure Motion
 - Election of Speaker
 - Joint session of Parliament(In case of Blockade)

TYPES OF AMENDMENTS

BY SIMPLE MAJORITY OF PARLIAMENT (outside the ambit of Article 368)

- More than 50% of the members present & voting.
- Frequently used in parliamentary business & when laws don't specify what type of majority.
- Eg : Formation of new states : Telengana.

BY SPECIAL MAJORITY OF PARLIAMENT (as per Article 368)

- 2/3 rd of the total strength (or) 2/3rd of present voting.
- used for most of the Constitutional Amendment Bills.
- Eg : Removing the Comptroller & Auditor General of India (CAG) (or) the Chief Election Commissioner (CEC).

BY SPECIAL MAJORITY OF PARLIAMENT + RATIFICATION OF ATLEST 1/2 OF SATATE LEGISLATURE (as per Article 368)

- 2/3 rd of the total strength (or) 2/3rd of present voting + 1/2 of state legislature.
- used for Constitutional Amendment Bills that tries to change federal structure.
- Eg : To pass a constitutional amendment bill that affects federalism like the

Special Majority

- Any majority apart from simple, absolute or effective majority
 - These have specific mentions in some Articles
1. Special Majority with **2/3rd** of members **Present and Voting**
 - **Article 249:** When Rajya Sabha legislates in matters of State List
 - **Article 312:** When Rajya Sabha creates new All India Services

Effective Majority

- More than 50% of effective Strength
- Effective Strength = Total Strength – Vacations
- Many MPs may vacate the office by either resignations or may be due to different reasons like death
- Where it is used:
 - Removal of Speaker/ Deputy Speaker of Lok Sabha & LA
 - Removal of Chairman / Vice Chairman of Rajya Sabha

Absolute Majority

- More than 50% of Strength of Parliament
- For now it is $545/2 = 272.5$, Hence it is 273
- As of now it is not used in any bills
- It is only required for a stable Government

2. Special Majority with **2/3rd** members **present and voting**
plus there is **Absolute Majority**

- **Under Article 368:** Constitution Amendment bill which do not affect federalism
- Removal of Judges of Supreme court/ High Court
- Removal of CEC/ CAG
- Approval of National emergency
- Under Article 169 : Resolution of State Legislative Assembly to create or remove Legislative Council